

NOVAHR

HR and Payroll, Built for South African Business

Master Subscription Agreement

Enterprise Customer Agreement

Version v1.0 | Effective 10 July 2026

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NovaHR Master Subscription Agreement (MSA)

Version: 1.0 (Draft, pending legal review) **Effective Date:** [●]

This Master Subscription Agreement ("Agreement") is entered into between:

[NOVA BUSINESS OS (PTY) LTD], registration number [●], a company incorporated in South Africa, with registered address at [●] ("NovaHR"); and

[CUSTOMER LEGAL NAME], registration number [●], with registered address at [●] ("Customer"),

(each a "Party", together the "Parties"), effective as of the date of last signature ("Effective Date").

1. Structure of the Agreement

1.1 This Agreement consists of this cover document and the following schedules, incorporated by reference:

- **Schedule A:** Order Form (plan, pricing, term, employee limits)
- **Schedule B:** Service Level Agreement
- **Schedule C:** Data Processing Agreement (POPIA)
- **Schedule D:** Acceptable Use Policy
- **Schedule E:** Support Policy

1.2 In case of conflict, the order of precedence is: Order Form, this cover document, Schedule C, then the remaining schedules.

2. The Service

2.1 NovaHR grants the Customer a non-exclusive, non-transferable right for its Authorised Users to access and use the NovaHR platform (HR, payroll, leave, attendance, and reporting for South African employers) during the Subscription Term, for the Customer's internal business purposes, subject to the plan limits in the Order Form.

2.2 NovaHR will provide the Service materially in accordance with its Documentation and the SLA, and will not materially degrade core functionality during a paid Subscription Term.

2.3 NovaHR retains all intellectual property in the Service. The Customer retains all rights in Customer Data.

3. Customer Obligations

3.1 The Customer will: (a) ensure Authorised Users comply with this Agreement; (b) keep credentials secure; (c) be responsible for the accuracy and lawfulness of Customer Data; (d) review and approve all payroll outputs before payment or statutory submission; (e) remain solely responsible for its employer obligations, including PAYE, UIF, SDL, EMP201/EMP501 submissions, and BCEA compliance.

3.2 The Service does not constitute tax, legal, accounting, or financial advice.

4. Fees, Invoicing, and Taxes

4.1 Fees are set out in the Order Form. NovaHR will invoice in advance per the billing frequency selected. Payment is due within [7/14/30: ●] days of invoice.

4.2 Fees exclude VAT, which is added where applicable. The Customer is responsible for withholding taxes if any, grossed up so NovaHR receives the full invoiced amount.

4.3 Late amounts accrue interest at 2% per month. NovaHR may suspend the Service on 7 days' written notice for amounts more than 14 days overdue.

4.4 Pricing is fixed for the Initial Term. Renewals may reflect updated pricing with at least 60 days' prior written notice.

5. Term and Termination

5.1 This Agreement starts on the Effective Date and continues for the Initial Term in the Order Form, renewing automatically for successive 12-month periods unless either Party gives at least 30 days' written notice of non-renewal.

5.2 Either Party may terminate: (a) for material breach not cured within 14 days of written notice; (b) immediately, if the other Party is placed in liquidation, business rescue, or makes a general assignment for creditors.

5.3 On termination: access ends; the Customer has a 30-day Export Window to export Customer Data in CSV and PDF formats; thereafter NovaHR deletes Customer Data per the Data Retention Policy, subject to statutory retention. Clauses intended to survive (fees accrued, confidentiality, liability, governing law) survive.

5.4 If NovaHR terminates for convenience (which it may not do during a paid Initial Term) or the Customer terminates for NovaHR's uncured material breach, NovaHR will refund prepaid fees for the unused remainder of the term pro rata.

6. Data Protection

6.1 The Parties record that, for Personal Information contained in Customer Data, the Customer is the Responsible Party and NovaHR is the Operator under POPIA. Schedule C governs that processing, including sub-operators (currently Supabase for database and authentication, Vercel for hosting, Resend for transactional email), security measures, breach notification within 72 hours of confirmation, and assistance with data subject requests.

6.2 NovaHR will maintain appropriate, reasonable technical and organisational security measures, including encryption in transit and at rest, role-based access control, tenant isolation, and audit logging.

7. Confidentiality

7.1 Each Party will keep the other's Confidential Information confidential, use it only for this Agreement, and disclose it only to personnel and advisers under equivalent duties. Standard exclusions (public knowledge, independent development, lawful third-party receipt, compelled disclosure with notice) apply.

7.2 These obligations last for 3 years after termination; for Personal Information and trade secrets, indefinitely.

8. Warranties

8.1 Each Party warrants it is duly incorporated and authorised to enter this Agreement.

8.2 NovaHR warrants: (a) the Service will materially conform to the Documentation; (b) it will provide the Service with reasonable skill and care; (c) it will maintain the payroll calculation engine in line with published SARS tax tables, updated within a reasonable period after each annual budget change.

8.3 The Customer's exclusive remedy for breach of 8.2(a) is re-performance, failing which termination and pro-rata refund. All other warranties are disclaimed to the extent permitted by law.

9. Indemnities

9.1 By NovaHR: NovaHR will defend and indemnify the Customer against third-party claims that the Service, as provided, infringes intellectual property rights, excluding claims arising from Customer Data, combination with third-party systems, or misuse. NovaHR may procure rights, modify the Service, or terminate and refund pro rata.

9.2 By Customer: The Customer will defend and indemnify NovaHR against third-party claims (including by the Customer's employees or by regulators) arising from Customer Data, the Customer's breach of POPIA as Responsible Party, or unlawful use of the Service.

10. Limitation of Liability

10.1 Neither Party is liable for indirect or consequential loss, loss of profits, revenue, or data.

10.2 Each Party's aggregate liability is capped at the fees paid or payable in the 12 months preceding the claim.

10.3 The cap does not apply to: indemnity obligations under clause 9; the Customer's payment obligations; a Party's fraud or wilful misconduct; or liability that cannot be excluded by law. [Optional for negotiation: a super-cap of 2x fees for data protection breaches.]

10.4 NovaHR is not liable for SARS or Department of Employment and Labour penalties arising from the Customer's own submissions, configuration, or failure to review outputs.

11. Insurance

NovaHR will maintain commercially reasonable insurance appropriate to its size, [including cyber liability cover of at least R[●] once placed], and will provide confirmation on request.

12. General

12.1 Governing law and jurisdiction: South Africa; the Parties consent to the jurisdiction of the High Court, [●] Division.

12.2 Dispute resolution: Senior-representative negotiation (30 days), then mediation, then AFSA arbitration in [Cape Town/Johannesburg: ●]. Urgent relief may be sought in court.

12.3 Force majeure: Neither Party is liable for failure caused by events beyond reasonable control, provided mitigation and notice.

12.4 Notices: In writing to the addresses above; email permitted to the notice addresses in the Order Form.

12.5 Assignment: Only with consent, except to affiliates or on sale of business.

12.6 Entire agreement, amendment: This Agreement is the entire agreement; amendments must be in writing and signed. No terms in a Customer purchase order apply.

12.7 Counterparts and electronic signature: May be signed electronically under ECTA.

Signature

	NovaHR	Customer
Signature	_____	_____
Name		
Title		
Date		

Schedule A: Order Form (template)

Field	Value
Plan	Starter (R499 pm, up to 10 employees) / Growth (R999 pm, up to 30) / Scale (R2,499 pm, unlimited)
Billing frequency	Monthly / Annual
Initial Term	12 months
Start date	[●]
Fees	R[●] per month, excl. VAT
Billing contact	[name, email]
Notice email addresses	[●]
Special terms	[●]